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Case Number: 24AHCV00231 Hearing Date: September 11, 2026 Dept: T

Kum Ran United Methodist

Church, et al. vs. California-Pacific Annual Conference of the United Methodist

Church, et al.

Motion for Leave

to Amend the First Cause of Action to Conform to Proof

Moving Party: Plaintiffs

Kum Ran United Methodist Church, First Evangelical United

Brethren Church of Whittier, Lemon Grove United Methodist Church, North

Clairemont United Methodist Church dba Clairemont Christian Fellowship, Christ

Our Savior United Methodist Church in Quartz Hill, and First United Methodist

Church of Fountain Valley dba The Fount

Responding Party: Defendant

California-Pacific Annual Conference of The United Methodist

Church

Tentative Ruling: Deny

BACKGROUND

On

February 2, 2024, Plaintiffs

Kum Run United Methodist Church, First Evangelical United Brethren Church of

Whittier, Lemon Grove United Methodist Church, North Clairemont United

Methodist Church dba Clairemont Christian Fellowship, Christ Our Savior United

Methodist Church in Quartz Hill, and First United Methodist Church of Fountain

Valley dba The Fount ("Plaintiffs") filed a complaint against Defendant California-Pacific Annual Conference of The United Methodist Church ("Defendant" or "Cal-Pac") and other named defendants, alleging the following causes of action: (1) declaratory relief; (2) judicial modification, termination, or reformation of trust; (3) breach of fiduciary duty; (4) unjust enrichment; (5) promissory estoppel; (6) breach of contract; and (7) breach of implied covenant of good faith and fair dealing.

This case arises from the attempted disaffiliation by certain congregations of the United Methodist Church ("UMC") and their retention of certain property purportedly held in a trust for the entire denomination pursuant to the terms of Addendum 2553 to the UMC's Book of Discipline.

On August 5, 2025, pursuant to a joint stipulation by the parties, the Court entered an order bifurcating the action into separate trials.

(Stipulation and Order, 8/5/25.)

Per the stipulation and order, a bench trial would first take place to adjudicate the first, second, fourth, and fifth causes of action for equitable relief. (Ibid.)

On July 2, 2026, the Court granted Defendant's motion for summary adjudication on the second cause of action for judicial modification, termination, or reformation of trust.

On July 29, 2026, following the bench trial that took place between July 13, 2026, and July 15, 2026, the Court granted Defendant's motion for judgment under Code of Civil Procedure section 631.8 on the fifth cause of action for promissory estoppel.

Plaintiffs

now move for leave to amend their first cause of action for declaratory relief to conform to proof.

Defendant

opposes, and Plaintiffs reply.

MOVING PARTY POSITION

Plaintiffs argue that the newly requested declarations in the proposed amendment to their declaratory relief cause of action simply plead the legal consequences of facts already in evidence and do not introduce any new and substantially different issues or any new and independent causes of action.

Plaintiffs also argue that Defendant cannot claim prejudice because the underlying facts were fully litigated and much of the key evidence was provided by Defendant's own documents and witnesses.

Plaintiffs further argue that the proposed amendment asks only for a declaration of the parties' respective rights and conforms the relief to the authorized charges proved at trial.

Plaintiffs finally argue that the timing of the instant motion is proper and that any potential prejudice to Defendant is curable through available remedies, including reopening discovery to obtain additional evidence or moving for a new trial.

OPPOSITION

Defendant contends that Plaintiffs' delay in seeking leave to amend their declaratory relief cause of action is unreasonable and unexplained, as Plaintiffs' counsel's declaration failed to set forth any reasonable excuse for the two-and-a-half year delay in bringing this motion.

Defendant also contends that Plaintiffs are seeking to add new facts for which there was no proof, as the evidence trial did not support its proposed amendment limiting the conditions to disaffiliation to the factual allegation that payment of apportionments, pension liabilities, and title transfer costs were the only conditions to disaffiliation when the evidence presented at trial proved otherwise. Plaintiffs also set forth new factual allegations that contradict stipulated facts and prior factual allegations regarding their performance of the conditions for disaffiliation.

Defendant further contends that it would be prejudiced by the proposed amendments to this cause of action given the nature of these newly alleged limitations to these conditions and the lack of evidence supporting the existence of such limitations under Paragraph 2553 or Plaintiffs' ability to satisfy these conditions. Plaintiffs' failure of proof at trial is not an immaterial variance.

REPLY

Plaintiffs reiterate their arguments as to the proposed withdrawal of the trust-reformation subparagraphs and respond that the proposed amendments to their declaratory relief cause of action rest on the identical facts litigated over three trial days and refine with more specificity the legal effect of facts already in evidence while adding no new operative facts. Plaintiffs further respond that Defendant cannot show prejudice and that their motion is procedurally proper.

ANALYSIS

I.

Legal

Standard

A. Amendment to Pleadings: General Provisions

Under

Code of Civil Procedure section 576, “[a]ny judge, at any time before or after commencement of trial, in the furtherance of justice, and upon such terms as may be proper, may allow the amendment of any pleading or pretrial conference order.”

Code

of Civil Procedure section 473, subdivision (a)(1) provides, in relevant part: “[t]he court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer.” The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.”

“This

discretion should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit.” (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1047.) The

Court of Appeal in *Morgan v. Superior Court* (1959) 172 Cal.App.2d 527 held, "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion."
(*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530, citations omitted.) Moreover, "it is an abuse of discretion for the court to deny leave to amend where the opposing party was not misled or prejudiced by the amendment." (*Kittredge*, *supra*, at p. 1048 [the opposing party did not establish harm by the delay in moving to amend the complaint].)

B. Amendment to Pleadings: Conforming to Proof

"A pleading may be amended at the time of trial unless the adverse party can establish prejudice. Where a party is allowed to prove facts to establish one cause of action, an amendment which would allow the same facts to establish another cause of action is favored, and a trial court abuses its discretion by prohibiting such an amendment when it would not prejudice another party. A variance between pleading and proof does not justify the denial of an amendment to conform pleading to proof unless the unamended pleading 'misled the adverse party to his prejudice in maintaining his action or defense upon the merits.'" (*South Bay Building Enterprises, Inc. v. Riviera Lend-Lease, Inc.* (1999) 72 Cal.App.4th 1111, 1124, internal citations omitted.)

"It is of course settled that the allowance of amendments to conform to the proof rests largely in the discretion of the trial court and its determination will not be disturbed on appeal unless it clearly appears that such discretion has been abused. [Citations.] Such amendments have been allowed with great liberality and no abuse of discretion is shown Unless [sic] by permitting the amendment new and substantially different issues are introduced in the case or the rights of the adverse party prejudiced." (*Trafton v. Youngblood* (1968) 69 Cal.2d 17, 31 [affirming denial of amendment to conform to proof that would have added claim for offset for reasonable value of defendant attorney's services, where issue of reasonable value of attorney's services was not before court and plaintiff client did not have opportunity to

offer evidence on such issue during trial].)

“[A]mendments of pleadings to conform to the proofs should not be allowed when they raise new issues not included in the original pleadings and upon which the adverse party had no opportunity to defend.’ [Citations.]” (Ibid.)

“The cases on amending pleadings during trial suggest trial courts should be guided by two general principles: (1) whether facts or legal theories are being changed and (2) whether the opposing party will be prejudiced by the proposed amendment. Frequently, each principle represents a different side of the same coin: If new facts are being alleged, prejudice may easily result because of the inability of the other party to investigate the validity of the factual allegations while engaged in trial or to call rebuttal witnesses. If the same set of facts supports merely a different theory ... no prejudice can result.’ ... ‘The basic rule applicable to amendments to conform to proof is that the amended pleading must be based upon the same general set of facts as those upon which the cause of action or defense as originally pleaded was grounded.’ [Citations.]” (Duchrow v. Forrest (2013) 215 Cal.App.4th 1359, 1378.) “As stated by a leading treatise, in ruling on a motion to amend a complaint to conform to proof, ‘the court is usually guided by whether: [¶] ... there is a reasonable excuse for the delay; [¶] ... the change relates to the facts or only to legal theories; and [¶] ... the opposing party will be prejudiced by the amendment.’ [Citation.]” (Id. at pp. 1378–1379, italics in original.)

II. Discussion

In seeking to conform the first cause of action for declaratory relief to proof, Plaintiffs propose the following amendments to Paragraphs 110(a)–(h) of the operative complaint:

A. Plaintiffs are independent church corporations, free from the regulation and control of the UMC and Cal-Pac insofar as the management, control, disposition, or alienation of their real property is concerned.

B. The 50% Clause is void and unenforceable against Plaintiffs. It is not an “additional standard term[] that [is] not inconsistent with the standard form” permitted by Paragraph 2553.4(a),

and it imposes no obligation on Plaintiffs as a condition of disaffiliation or of retaining their property.

C. Plaintiffs' performance of any

Paragraph 2553 requirement not completed as of the date Cal-Pac imposed the 50% Clause is excused, and Plaintiffs are deemed to have satisfied all conditions to disaffiliation within their control; Cal-Pac may not rely on Plaintiffs' non completion of those requirements — which its own unauthorized demand caused — to defeat their right to disaffiliate.

D. The December 31, 2023 deadline

in Paragraph 2553.2 does not bar Plaintiffs' disaffiliation. Because Plaintiffs timely undertook the disaffiliation process and their failure to complete it before that date resulted from Cal-Pac's unauthorized demand, their disaffiliation rights are preserved and enforceable as of their timely performance.

E. Plaintiffs are entitled to

disaffiliate from the UMC under Paragraph 2553 upon satisfying only the obligations that Paragraph 2553 actually authorizes — namely, apportionments under Paragraph 2553.4(b), a pro rata share of any unfunded pension obligations under Paragraph 2553.4(d), and their own costs of transferring title under Paragraph 2553.4(c) — and without paying 50% (or any portion) of the appraised value of their real property.

F. Upon disaffiliation in

accordance with Paragraph 5 [sic] above, each Plaintiff has the right to retain its real and personal, tangible and intangible property, free of any claim of the UMC or Cal-Pac, pursuant to Paragraph 2553.4(c).

G. No trust provision of the Book

of Discipline — including the Paragraph 2501 trust clause — prevents Plaintiffs from disaffiliating with their property.

(Bowman

Decl. ¶ 5, Exh. 1.) Plaintiffs also propose

striking the declarations found in Paragraphs 110(c)–(h) regarding the reformation, modification, or termination of the underlying trusts to the UMC in which their real properties are held. (Compare *id.* with Compl. ¶ 110(c)–(h).)

At the outset, the Court notes that Plaintiffs failed to provide any reasonable excuse for the delay in seeking these amendments. Although the Court ultimately determined as matter of law that the imposition of the 50% charge as a condition for Plaintiffs' retention of their real property upon disaffiliation was not authorized by Paragraph 2553.4, the Court held in its July 2, 2026, ruling on Defendants' summary judgment motion that, absent satisfaction of Paragraph 2553's procedures and conditions, Plaintiffs hold their real property in trust for the UMC, subject to the terms of the Book of Discipline. (Min. Order, 7/2/26.) Implicit to this determination was the Court's recognition that the 50% charge was only one component of other existing procedures and conditions that were required for disaffiliation. Additionally, as noted by the Court in its May 22, 2026, ruling on Plaintiffs' summary judgment motion, it was not evident that a determination of the 50% charge would completely dispose of the declaratory relief cause of action, as Plaintiffs failed to set forth material facts establishing their entitlement to retain ownership of their real property. (Min. Order, 5/22/26.) Moreover, as acknowledged by the Court in its July 29, 2026, ruling on Defendant's motion for judgment, "each Plaintiff church offered testimony showing that they initially sought out information about the process of disaffiliation from Defendant" and Plaintiffs were provided with a "disaffiliation package" that included Paragraph 2553's guidelines. (Min. Order, 7/29/26.) Given the indisputable fact that the disaffiliation guidelines were provided to Plaintiffs long before commencing the instant litigation, Plaintiffs knew, or were on notice, that satisfaction of the remaining conditions and procedures for disaffiliation, beyond the discrete 50% charge issue, would need to be materially addressed in the first cause of action to establish their entitlement to retain the property under Paragraph 2553's terms. (See, e.g., *Duchrow v. Forrest*, 215 Cal.App.4th at p. 1380.) Accordingly, in belatedly seeking to amend the declaratory relief cause of action to establish their right-to-retention based on the performance or excuse therefrom of these conditions, and based on the available record, the Court finds that Plaintiffs have shown no reasonable excuse for their delay.

Furthermore, although Plaintiffs argue that the proposed amendments merely "refine with more specificity the legal effect of facts already in evidence and do not add new operative facts" (Reply, at p. 2.), the amendments do not appear to conform to proof. In example, by its language, Paragraph

2553.4a required that the disaffiliation agreement “include a recognition of the validity and applicability of ¶ 2501, notwithstanding the release of property therefrom” (Compl. ¶ 47, Exh. A), yet Plaintiffs stipulated to the fact that the four of the Plaintiff churches “would not have signed an agreement including a recognition of the validity and application of ¶2501, notwithstanding the release of property therefrom.” (Joint Statement of Stipulated Facts ¶¶ 94–97.) Plaintiffs similarly stipulate to the fact that none of them “paid all the other amounts necessary to disaffiliate, including the required 12 months’ future annual apportionments”, which were also requisite conditions for disaffiliation. (Id. ¶ 93.) Given such nonconformities, Plaintiffs’ proposed amendments appear to improperly seek a declaration deeming them to have satisfied all conditions to disaffiliation within their control, which is not supported by the evidence.

To the extent that Plaintiffs argue that the phrase “deemed to have satisfied” should be understood as seeking a declaration excusing any non-performance of this and any other conditions under Paragraph 2553, this argument seemingly relies on the subsequent, unevicenced factual assertion that “apportionments under Paragraph 2553.4(b), a pro rata share of any unfunded pension obligations under Paragraph 2553.4(d), and their own costs of transferring title under Paragraph 2553.4(c) — and without paying 50% (or any portion) of the appraised value of their real property” are the only remaining conditions that Plaintiffs must satisfy in order to complete disaffiliation and retain their real property. (Bowman Decl. ¶ 5, Exh. 1.) Thus, as this asserted fact is vital to the proposed declaratory relief and was unproved in its general scope and meaning by Plaintiffs, such a failure of proof is not a variance that can be cured by further amendment. (See Code Civ. Proc. § 471.)

Even if there was evidence to support conforming the declaratory relief cause of action in the manner proposed by Plaintiffs, given the history the instant litigation, as well as the nature of the issues that were presented to the Court over the course of the litigation and at trial as compared to the issues presented by this newly sought relief, the Court finds that granting Plaintiffs leave to amend would substantially and unfairly prejudice Defendant.

Thus, based on the foregoing, the Court exercises its discretion and denies the motion.

RULING

Plaintiffs' Motion for
Leave to Amend the
First Cause of Action to Conform to Proof is
DENIED.